

		behalf of Defendant. Plaintiff chose not to oppose this Motion and thus has not met that burden. Thus, the Motion is granted. Specially appearing Defendant is ordered to serve notice of this Order.
107.	2023-1310721 Fulton v. Swinney	Defendants Colleen Swinney (“COLLEEN”) and Pickford Real Estate, Inc. dba Berkshire Hathaway HomeServices California Properties (“BERKSHIRE”) (collectively “Defendants”) demur to the third cause of action for fraudulent concealment alleged in Plaintiffs Bryan and Elle Fulton’s (“Plaintiffs”) First Amended Complaint (“FAC”). Defendants contend the fraudulent concealment claim is insufficiently pled because Plaintiffs fail to allege specific facts to support their conclusions that they, the listing agent and broker, were aware of “latent water intrusion defects which were allegedly concealed and not discovered until plaintiffs began upgrading the Property and retained a mold expert”; that the allegations that COLLEEN is “the sellers’ daughter-in-law” and “had spent significant time at the [Property] over the years” and used the barbeque and backyard are insufficient; that the Complaint is devoid of any specific facts that Defendants knew about the latent defects merely because they worked with Sellers to prepare the Property for listing and sale; and the FAC fails to allege which specific defendants misrepresented and/or concealed which specific latent defects (See FAC, ¶¶ 24, 28-30, and 52.) “The elements of a claim for fraudulent concealment require the plaintiff to show that: ‘(1) the defendant ... concealed or suppressed a material fact, (2) the defendant [was] under a duty to disclose the fact to the plaintiff, (3) the defendant ... intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff [was] unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal. App. 4th 1105, 1130.) “The duty to disclose may be established where there is a confidential relationship between the parties, defendant has

		made a representation which was likely to mislead due to the nondisclosure, there is active concealment of undisclosed matters, or one party has sole knowledge of or access to material facts and knows such facts are not known to or discoverable by the other party.” (Id.) Here, the FAC alleges that Plaintiffs are “informed and believe that Defendant Colleen, as Sellers’ daughter-in-law, had spent significant time at the Real Property over the years, knew about the defects therein, and had worked with Sellers to prepare the Real Property for listing and sale and had been doing so for many months prior to meeting Plaintiffs”; that “Plaintiffs’ uncovered significant and long-standing defects that Defendants failed to disclose and/or purposefully concealed from Plaintiffs”; that “Defendants were required to disclose any and all known material facts that would affect the desirability and marketability of the Real Property, yet Defendants failed to disclose and/or purposefully concealed these significant fact”; that “Sellers had a new roof installed on the Real Property in or about February 2021”; that “Plaintiffs are informed and believe, and on that basis allege, that the new roof was installed, in large part, because of leaks, including leaks in the northwest corner of the Real Property, that were causing significant and hazardous defects from water intrusion, including the presence of toxic mold; that “Plaintiffs are informed and believe, and on that basis allege, that the Broker Defendants were aware of these defects because, among other things, they were representing Sellers long before the new roof was installed and Colleen is Sellers’ daughter-in-law who spent significant time at the Real Property”; and that Defendants failed to disclose and/or concealed other significant defects in the condition of the Property. (See FAC, ¶¶ 52-55.) The FAC also alleges that “in or about July 2019, the Broker Defendants represented Sellers in Sellers’ efforts to sell the Real Property”; that Plaintiffs first saw the Property in or about April 2020 at an open house hosted by Broker Defendants and the Property had an older roof and that a \$36,000 credit would be paid at closing for the installation of a new roof; that Broker Defendants falsely represented that they were unaware of any defects including past defects that had been repaired as to the roof, attic, windows, walls, ceilings and floors; that they denied being aware of any water intrusion, leaks or issues with mold; and that Plaintiffs believe there were numerous leaks in the plumbing of the Real Property which Defendants were aware of and intentionally or
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		negligently failed to disclose them or actively concealed them from Plaintiffs. (See FAC, ¶¶ 15, 16, 21, and 23.) These allegations sufficiently allege a cause of action for fraudulent concealment as the FAC alleges that Defendants were aware of the water intrusion defects and failed to disclose them. There is no legal requirement that Plaintiffs allege specific facts as to how Defendants knew about these defects. A complaint need only “allege the ultimate facts necessary to the statement of an actionable claim.” (Careau & Co. v. Sec. Pac. Bus. Credit, Inc. (1990) 222 Cal.App.3d 1371, 1390.) Accordingly, the demurrer to the fraudulent concealment cause of action is OVERRULED. Motion to Strike. Defendant Colleen Swinney (“Defendant”) seeks an order striking the punitive damages allegations -- paragraph 62, lines 24-26, and Prayer, p. 15, Paragraph 3 – from the First Amended Complaint (“FAC”). Defendant contends the FAC fails to allege sufficient facts to warrant punitive damages as the allegations do not rise to the “malice” or “oppression”. “In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citations.]” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) “Further, even though certain language pleads ultimate facts or conclusions of law, such language when read in context with the facts alleged as to defendants’ conduct may adequately plead the evil motive requisite to recovery of punitive damages.” (Monge v. Superior Court (1986) 176 Cal.App.3d 503, 510.) “The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc. § 437(a).) To support exemplary damages, the complaint must allege facts of defendant’s oppression, fraud, or malice, as required by Civil Code section 3294. (Civil Code § 3294(a); College Hospital Inc. v. Superior Court (1994) 8 Cal. 4th 704, 721; Turman v. Turning Point of Central Calif., Inc. (2010) 191 Cal.App.4th 53, 63.)
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108.	2022-1272612 Guerrero v. A Better Life Recovery, LLC.	Plaintiff's Objections 1 – 4 to the Declaration of William Mara are OVERRULED. Defendants' Objections 1 – 14 to the Declaration of Christian J. Petronelli are OVERRULED. Defendants' Objections 1 – 9 to the Declaration of Rachel Guerrero are OVERRULED. Defendants, A Better Life Recovery, LLC and A Mission For Michael, Inc., Motion to Compel Arbitration is DENIED. Defendants have not met their burden of showing that a valid written agreement to arbitrate exists. The Declaration of William Mara does not lay a proper or sufficient business records foundation under Evidence Code §1271. Because he has not laid a sufficient business records foundation, it has not been shown that any electronic signature has been shown to be the act of plaintiff as required by Civil Code §1633.9(a). Moving party shall give notice.
109.	2023-1311720 Home Expo Group LLC v. Nguyen	Off calendar pursuant to Notice filed.
110.	2022-1295621 Kowalski v. BMW of North America LLC	Defendant BMW of North America, LLC.'s motion to compel arbitration of Plaintiffs Tuvet Tran's and Lucille Kowalski's claims is denied. Plaintiffs' objections are overruled. The Retail Installment Sales Contract ("RISC") that Plaintiffs signed when they purchased the vehicle at issue in this Song-Beverly case contained an arbitration provision that includes the following language (emphasis added): Either you or I may choose to have any dispute between us decided by arbitration and not in a court or by jury trial. If a dispute is arbitrated, I will give up my right to participate as a class representative or class member on any Claim I may have against you including any right to class arbitration or any consolidation of individual arbitrations. Discovery and rights to appeal in arbitration are generally more limited than in a